

at issue before the court. (See *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476.)

Cross-Defendant's application for distribution of interplead funds does not remedy the above deficiencies as it is equally deficient as to factual support.

25CV-02170

City of Fresno Employees Retirement System, et al. vs City of Fresno

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is **DENIED** as to the second cause of action, and **GRANTED WITH LEAVE TO AMEND** as to the third cause of action.

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex rel. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.)

Cross-Complainant's second cause of action adequately pleads a breach of fiduciary duty. Although a breach of fiduciary duty may be a legal claim, it may also be equitable in nature. Breach of fiduciary duty claims in California carry a particularly robust set of available equitable remedies, including injunctive relief. In this instance, when the cross-complaint is read as a whole, the breach of fiduciary duty cause of action sounds in equity and is sufficient at the pleading stage.

As to the third cause of action for negligence, equitable relief is generally available only if legal remedies such as monetary compensation are inadequate. Here, the cross-complaint alleges Cross-Complainant was monetarily harmed as a result of Cross-Defendant's alleged actions. (FACC, ¶¶ 104-106, 14:18-25.) In this context, Cross-Complainant's third cause of action appears to seek monetary damages and does not adequately plead equitable relief so as to preclude the Government Claims Act and the immunities thereto from applying. Cross-Complainant has requested leave to amend, which is granted.

Any amended cross-complaint is to be filed within ten (10) days of this court's order.

Case Management Conference

CONTINUED ON THE COURT'S OWN MOTION to August 14, 2026, at 8:15 a.m. in Courtroom 8 in light of the above ruling.
